

24STCV31511 24STCV31511

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Case Number: 24STCV31511 Hearing Date: July 22, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 07/22/2026

CASE NUMBER: 24STCV31511

CASE NAME: EMILY NEJAD vs TKS RESTAURANTS, LLC, A CAL...

MOVING PARTY: Plaintiff Emily Nejad

OPPOSING PARTY: N/A

PROCEEDING: Motion For Final Approval of Class Action Settlement and Approval of
PAGA Settlement

MOVING PAPERS: 03/16/2026

OPPOSITION: N/A

REPLY: N/A

RULING

SUMMARY: Plaintiff Emily Nejad's

Motion for Final Approval is GRANTED.

Background

On December 2, 2025, Emily Nejad

("Plaintiff") filed a Complaint against TKS Restaurants, LLC ("TKS"); and David Mejia (collectively "Defendants"). She filed the operative Second Amended Complaint ("SAC") on May 22, 2025. The SAC alleges fifteen causes of action for (1) Discrimination, (2) Harassment, (3) Retaliation, (4) Failure to Prevent Discrimination, (5) Wrongful Termination in Violation of Public Policy, (6) Negligent Supervision and Retention, (7) Failure to Pay Wages, (8) Failure to Pay Minimum Wages, (9) Failure to Pay Overtime Compensation, (10) Failure to Indemnify for Necessary Business Expenses; (11) Failure to Provide Meal and Rest Periods; (12) Failure to Provide Itemized Wage and Hour Statements; (13) Waiting Time Penalties; (14) Private Attorney General Act; and (15) Unfair Competition (Bus. & Prof. Code § 17200 et seq.).

On June 27, 2025, the Parties submitted an Unopposed Motion for Preliminary Approval of Class Action and Approval of PAGA Settlement. On July 7, 2025, Edgar Espino filed a motion for leave to intervene in this action, which was denied.

On March 16, 2026, Plaintiff filed this Motion for Final Approval of Settlement. No Opposition has been filed.

LEGAL STANDARD

California Rules of Court, rule 3.769(a) provides the following with regard to approval of class action settlements:

(a) Court approval after hearing

A settlement or compromise of an entire class action, or of a cause of action in a class action, or as to a party, requires the approval of the court after hearing.

(b) Attorney's fees

Any agreement, express or implied, that has been entered into with respect to the payment of attorney's fees or the submission of an application for the approval of attorney's fees must be set forth in full in any application for approval of the dismissal or settlement of an action that

has been certified as a class action.

(c) Preliminary approval of
settlement

Any party to a settlement agreement may serve and file a written notice of motion for preliminary approval of the settlement. The settlement agreement and proposed notice to class members must be filed with the motion, and the proposed order must be lodged with the motion.

(d) Order certifying provisional
settlement class

The court may make an order approving or denying certification of a provisional settlement class after the preliminary settlement hearing.

(e) Order for final approval
hearing

If the court grants preliminary approval, its order must include the time, date, and place of the final approval hearing; the notice to be given to the class; and any other matters deemed necessary for the proper conduct of a settlement hearing.

(f) Notice to class of final
approval hearing

If the court has certified the action as a class action, notice of the final approval hearing must be given to the class members in the manner specified by the court. The notice must contain an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any objections to the proposed settlement.

(g) Conduct of final approval
hearing

Before final approval, the court must conduct an inquiry into the fairness of the proposed settlement.

(h) Judgment and retention
of jurisdiction to enforce

If the court approves the settlement agreement after the final approval hearing, the court must make and enter judgment. The judgment must include a provision for the retention of the court's jurisdiction over the parties to enforce the terms of the judgment. The court may not enter an order dismissing the action at the same time as, or after, entry of judgment."

DISCUSSION

A.

Settlement Class Definition

"Class Members" means "all individuals who worked any amount of time for Defendant as nonexempt, hourly employees within California, at any time during the class period. (Decl. Setyan, Ex. 1 at § 1.6.)

"Class Period" means the period from April 21, 2019, through final judgment/class certification. (Id. at § 1.8.)

B.

Terms of Settlement Agreement

The essential terms are as follows:

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The settlement Administrator will be ILYM Group, Inc. ("Administrator").

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The Settlement Fund amount in the Settlement Agreement states: "Qualified Settlement Fund. The Administrator shall establish a settlement fund that meets the requirements of a Qualified Settlement Fund under U.S. Treasury Regulation section 468B-1." (Id. § 6.3.)

The declaration and proposed order show that the gross settlement amount is \$430,000.00 and is non-revisionary. (Id. § 15; Proposed Order ¶ 6.)

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The Payout Fund is the Gross Settlement amount minus:

o \$143,333.33

(33.33%) in attorney's fees to Setyan Law, APC (id.);

o \$22,000.00

in litigation costs and expenses to Setyan Law, APC (id.);

o \$9,350.00

in administration costs to ILYM Group (id.);

o \$10,000

to Plaintiff (id.);

o \$81,577.60

Labor Workforce and Development Agency ("LWDA") (id.);

o \$43,926.40

to the Aggrieved Employees (id.);

o \$119,812.66

to the Class (id.)

.

The Settlement Agreement provides a workweek estimate of 52,975 Class Workweeks for the calculation of individual class payments. (Id. §§ 1.12-1.13, 1.22.)

.

Response Deadline: The deadline by which Class Members needed to postmark or fax to the Administrator a valid Request for Exclusion or Objection will be 45 days after the Administrator mails the Notice to Class Members. (Id. § 1.10.) Class Members to whom the Class Notice is resent after being returned undeliverable shall have an additional 14 calendar days beyond the Response Deadline expiry. (Id.)

o If

25 percent or more of the total Class Members opt out, Defendant may, but is not obligated to, elect to withdraw from the settlement within seven days after the Response Deadline. (Id. § 8.)

.

Funding of the settlement amount: TKS shall fully fund the Gross Settlement Amount and fund the amounts necessary to fully pay its share of payroll taxes by transmitting the funds to the Administrator no later than 30 days after the Effective Date. (Id. § 3.2.)

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Disbursement: Within 10 days of TKS funding the Gross Settlement Amount, the Administrator will mail checks for all Individual Settlement Payments, the Administration Expenses, the LWDA Payment, Attorneys' Fees, Litigation Costs, and Service Payment. (Id. § 3.3.) The Administrator will issue checks for the Individual Settlement Payments and send them to Covered Employees via First Class U.S. Mail, postage prepaid. (Id. § 3.3.1.)

.

Participating class members and the named Plaintiff will release certain claims against Defendants. (See further discussion below)

C.

Analysis of Settlement Agreement

1.

Does a presumption of fairness exist?

On December 10, 2024, and February 25, 2025, the parties participated in two separate arms-length mediations before Mark LeHocky, which ultimately resulted in a settlement. (Id. ¶¶ 8-14.)

2.

Were investigation and discovery sufficient to allow counsel and the Court to act intelligently?

TKS produced payroll data and timesheets for Plaintiff and a random sampling of twenty percent of the similarly aggrieved employees that comprised the PAGA class; Plaintiff and TKS thoroughly analyzed that data, showing very limited violations; TKS represented that it possessed meal waiver forms for employees working less than six hours per shift, which comprised a large number of the total PAGA class; the parties discussed the relative strengths and weaknesses of the case at length, including Plaintiff' review of time records, scheduling notes, and attendance documentation provided by TKS. (Id. ¶ 8.) Plaintiff compared those records to documentation Plaintiff maintained relating to the hours worked and the discrepancies in the time records provided. (Id.)

3.

Is counsel experienced in similar litigation?

Yes. Class counsel has litigated at least one 150 wage and hour disputes. (Id. ¶ 2.)

4.

What percentage of the class has objected?

Only one of the 956 Settlement Class Members requested exclusion from the Settlement, no Settlement Class Members objected to the Settlement, and no Settlement Class Members submitted any disputes. (Second Supp. Decl. Setyan ¶ 4.) The amount of 955 Settlement Class Members—representing 99.89 percent of the Class—are participating in the Settlement. (Id.)

5.

Conclusion of Analysis

The settlement is entitled to a presumption of fairness.

D.

Is the settlement fair, adequate and reasonable?

1.

Strength of Plaintiff's Case

The most important factor is the strength of the case for plaintiff on the merits, balanced against the amount offered in settlement.” (Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 130.) Plaintiff describes the strength of her case through Samvel Setyan (“Class Counsel”)’s declarations. In the three declarations, the Court does not find a claim-by-claim damage analysis. However, it appears the parties discussed the strengths and weakness of the case, and Defendants do not oppose this motion. (Decl. Setyan ¶¶ 8, 10.)

2.

Risk, Expense, Complexity and Likely Duration of Further Litigation.

Given the nature of the class claims, the case is likely to be expensive and lengthy to try. Procedural hurdles (e.g., motion practice and appeals) are also likely to prolong the litigation as well as any recovery by the class members.

Class Members were generally subject to an arbitration agreement, which could have prevented the case from proceeding on a class basis. According to a representation by Plaintiff’s counsel, virtually all of the Class Members signed arbitration agreements. (See C(4) above.) This factor appears significant, because any Class Members prevented from proceeding as a class would receive nothing through litigation.

3.

Risk of Maintaining Class Action Status Through Trial

Even if a class is certified, there is always a risk of decertification. (See *Weinstat v. Dentsply Intern., Inc.* (2010) 180 Cal.App.4th 1213, 1226 [“Our Supreme Court has recognized that trial courts should retain some flexibility in conducting class actions, which means, under suitable circumstances, entertaining successive motions on certification if the court subsequently discovers that the propriety

of a class action is not appropriate.”].)

4.

Amount Offered in Settlement

The settlement amount, after the listed deductions, is \$163,739.06.

Plaintiff asserts that class action potential recovery is like a coin flip and, as such, the settlement is within the ballpark of reasonableness. (See Mtn. at 5.)

Plaintiff has not provided information on individual settlement share. The Court requests that Plaintiff's counsel present information at the hearing on this question as well as the adequacy of individual settlement share.

5.

Extent of Discovery Completed and Stage of the Proceedings

As indicated above, at the time of settlement, Class Counsel had sufficient information via investigation through cooperation between the parties.

6.

Experience and Views of Counsel.

The settlement was negotiated and endorsed by class counsel who, as indicated above, is experienced in class action litigation, including wage and hour class actions.

7.

Presence of a Governmental Participant.

The LWDA has not participated in this action.

8.

Reaction of the Class Members to the Proposed Settlement

It appears that the majority of Class Members are satisfied with the proposed settlement as only one has opted out. (See C(4), above.)

9.

Conclusion of Analysis

Based on Class Counsel's representation that nearly all of the Class Members had signed waivers, the Court determines that the settlement size is adequate, as those Class Members would otherwise have potentially received nothing through litigation.

E.

Scope of Release

Release by Participating Class

Members: All Participating Class Members release Released Parties from any and all claims, damages, and penalties alleged in the Operative Complaint and arising out of the facts in the Operative Complaint during the Class Period, including, without limitation, claims for: (1) minimum wage violations, (2) failure to pay all overtime wages, (3) meal period violations, (4) rest period violations, (5) untimely payment of wages, (6) wage statement violations, (7) waiting time penalties, (8) failure to reimburse business expenses, (9) failure to pay wages, (10) unfair competition, and (11) civil penalties under the Private Attorneys General Act (labor code §§ 2698 et seq.). Participating Class Members do not release any other claims, including claims for vested benefits, wrongful termination, violation of the Fair Employment and Housing Act, unemployment insurance, disability, social security, workers' compensation, or claims based on facts outside of the Operative Complaint or outside the Class Period. (Decl. Setyan at Exh. 1 § 4.2.)

Release by PAGA Members: Release

by PAGA Members: All PAGA Members and the LWDA release Released Parties from, and are forever barred from pursuing such against Released Parties for, the PAGA claims alleged in and/or arising out of the facts alleged in the Operative Complaint during the PAGA Period, including, without limitation penalties predicated on the underlying alleged violations for: (1) minimum wage

violations, (2) failure to pay all overtime wages, (3) meal period violations, (4) rest period violations, (5) untimely payment of wages, (6) wage statement violations, (7) waiting time penalties, (8) failure to reimburse business expenses, (9) failure to pay wages, (10) unfair competition ,and (11) civil penalties under the Private Attorneys General Act (labor code §§ 2698 et seq.). (Id. at § 4.3.)

o

“Released Claims” means the claims being released in connection with this Settlement, as set out above. (Id. at § 1.43.)

o

“Released Parties” means: Defendant [TKS] and each former and present directors, officers, shareholders, owners, attorneys, insurers, predecessors, successors, assigns, subsidiaries, and affiliates. (Id. at § 1.44.)

o

Plaintiff additionally provides general release of his claims against TKS. (Id. at § 4.1). Plaintiff provides a Civil Code, section 1542 waiver. (Id. at § 4.1.1.)

F.

May Conditional Class

Certification be Granted?

1.

Standards

A detailed analysis of the elements required for class certification is not required, but it is advisable to review each element when a class is being conditionally certified (*Amchem Products, Inc. v. Windsor* (1997) 521 U.S. 620, 622-627.) The trial court can appropriately utilize a different standard to determine the propriety of a settlement class as opposed to a litigation class certification. Specifically, a lesser standard of scrutiny is used for settlement cases. (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 2794, 1807 fn. 19.) Finally, the Court is under no “ironclad requirement” to conduct an evidentiary hearing to consider whether the prerequisites for class certification have been satisfied. (*Wershba v. Apple*

Computer, Inc. (2001) 91 Cal.App.4th 224, 240 [disapproved on other grounds by Hernandez v. Restoration Hardware, Inc. (2018) 4 Cal.5th 260].)

2.

Analysis

Numerosity:

Plaintiff states that there are 956 Class Members. (See Second Supp. Decl. Setyan at ¶ 4.)

Ascertainability: The

proposed class is defined above. The class definition is “precise, objective and presently ascertainable.” (Sevidal v. Target Corp. (2010) 189 Cal.App.4th 905, 919.)

Community of Interest: “The

community of interest requirement involves three factors: ‘(1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class.’ ” (Linder v. Thrifty Oil Co. (2000) 23 Cal.4th 429, 435.)

As to commonality, Plaintiffs

contend that the main issues involve the legality of Defendant’s employment policies regarding Plaintiff’s claims asserted in this action. Plaintiff contends that their claims are typical of class certification because issues of employment, such as policies and payroll procedures, are capable of being resolved together. (See Mtn. at C(2).)

Adequacy of Class Counsel: s

indicated above, Class Counsel has shown experience in class action litigation, including wage and hour class actions.

Superiority: Given the

relatively small size of the individual claims, a class action appears to be superior to separate actions by the class members.

The class may be conditionally

certified since the prerequisites of class certification have been satisfied.

G.

Is Notice Proper?

The notice is attached to Class

Counsel's Declaration as Attachment A to the Settlement. Its content appears to be acceptable. It includes information such as a summary of the litigation; the nature of the settlement; the terms of the settlement agreement; the proposed deductions from the gross settlement amount (attorney fees and costs, enhancement awards, and administration costs); the procedures and deadlines for participating in, opting out of, or objecting to, the settlement; the consequences of participating in, opting out of, or objecting to, and the settlement. The notice is provided in English. However, the date, time, and place of the final approval hearing are templated. Class counsel provides the filled out template as Exhibit 3.

The Court has discussed the method of class notice and cost of class notice above.

The notice appears to be proper.

H.

Attorney Fees and Costs

California Rules of Court, rule

3.769(b) states: "Any agreement, express or implied, that has been entered into with respect to the payment of attorney fees or the submission of an application for the approval of attorney fees must be set forth in full in any application for approval of the dismissal or settlement of an action that has been certified as a class action."

Ultimately, the award of attorney

fees is made by the court at the fairness hearing, using the lodestar method with a multiplier, if appropriate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095-1096; Ramos v. Countrywide Home Loans, Inc. (2000) 82 Cal.App.4th 615, 625-626; Ketchum III v. Moses (2000) 24 Cal.4th 1122, 1132-1136.) Despite any agreement by the parties to the contrary, "the court ha[s] an independent right and responsibility to review the attorney fee provision of the settlement agreement and award only so much as it determined reasonable." (Garabedian v. Los Angeles Cellular Telephone Company (2004) 118 Cal.App.4th 123, 128.)

The Court has discussed the Class Counsel's fees and the administration fees above. The Court determines the fees to be reasonable.

I.
Incentive Award

The Settlement Agreement does not discuss an enhancement award. The motion states that Plaintiff had already applied for a \$10,000 enhancement award relative to the prior-filed PAGA settlement approval motion, which the Court tentatively approved, but that the Parties opted to consolidate both settlements into one streamlined motion. (See Mtn. at 14:9-12.) As such, Plaintiff has not enhanced her proposed enhancement award.

Accordingly, the Motion for Final Approval is granted.

Conclusion

Plaintiff
Emily Nejad's Motion for Final Approval is granted.

Date: 07/22/2026 _____

William
E. Weinberger

Judge,
Los Angeles Superior Court